

COMMERCIAL QUESTIONNAIRE FOR INDIGENOUS BIDDERS
Sound Powered Telephone system for 2xDSVs VC-11190-91
MP/340000313 Dated 21 Sep 2020

SL NO.	COMMERCIAL CONDITIONS	DETAILS OF COMMERCIAL CONDITIONS	ACCEPTANCE
1		The format must accompany Part – I (Un-Priced) only and should not contain the price in any form but the tenderers are requested to confirm specifically that the price quoted is for FOR HSL stores door delivery basis	Noted & Agreed.
2		Bidders are requested to read the Commercial questionnaire, standard terms and conditions (GENERAL TERMS AND CONDITIONS) carefully prior to filling up their acceptance / non acceptance. Separate sheet (if required) can be attached for any deviations taken.	Noted & Agreed.
3		As the matter is to be finalized on priority, no deviation / counter offers to the above points shall be entertained. Hence confirm compliance to all the points by mentioning "Accepted / complied" under "Bidders remarks" column and also make sure that all the sheets are duly signed and stamped.	Noted & Agreed.
1.1	PRICE & TERMS OF DELIVERY	Price shall be quoted in figures as well as words. Please confirm that the price quoted is on FOR HSL Stores delivery terms basis. NOTE: In case the terms of delivery offered is on ex-works basis, packing and forwarding charges (P&F) if applicable, is to be invariably indicated as a percentage on ex-works price. Otherwise, HSL will consider that the price is inclusive of P&F charges. If P&F is applicable and not quantified by the Bidder, HSL will consider the loading factor of 2% towards packing and forwarding charges and Similarly 5% (five percent) towards freight irrespective of the dispatching station and 0.25% Insurance charges on the price quoted on ex-works terms / F.O.R. dispatching station terms, as the case may be, or higher as offered by other bidders in the fray, for comparison purpose while evaluating the offers to make them on par with others.	Noted & Agreed Price is FOR HSL stores basis. Any Changes in the law by the Govt. in terms of taxes & duties due to introduction of GST shall be applicable and reimbursement shall be made by shipyard accordingly at the time of payment.
1.2	DELIVERY	Material shall be dispatched through experienced, regular, reputed and registered / licensed Transport agency only.	Noted & Agreed.
2	FIRM PRICE	Please confirm your price quoted shall be firm and fixed till complete execution of order.	Noted & Agreed.
3	PART ORDER	Please confirm acceptance for placement of part order by HSL.	Not applicable since it is supply of single system
4	TERMS OF PAYMENT	i. 90% payment shall be made against delivery and acceptance of the Equipment. ii. 10% Payment shall be made post completion of HATs & SATs of the equipment.	Noted & Agreed. If the HATs & SATs are not schedule within 12 months of delivery, 10% payment shall be released to Elcome against equivalent BG
4.2	LOADING FOR VARIATION IN PAYMENT TERMS	Offers taking any deviation to these terms will be loaded with a suitable loading factor as per HSL norms for comparison purpose to make the offer on par with others. (See HSL Standard Business Terms & Conditions for details)	Noted & Agreed.
5	PACKING	Please confirm that the materials shall be securely packed to withstand any sort of hazards in transit	Noted & Agreed.
6	MATERIAL GUARANTEE	Please confirm that you shall guarantee the material/ equipment supplied for workmanship and Performance of material / equipment for a period of 36 months from the delivery of equipment at HSL or for a period of 12 months from the date of delivery of the vessel to the owners whichever is earlier. Offers taking any deviation to the above will be loaded with a suitable loading factor as per HSL norms for comparison purpose to make the offer on par with others. (See HSL Standard Business Terms & Conditions for details).	Noted & Agreed.
7	PERFORMANCE BANK GUARANTEE	In the event of any defect in the workmanship, quality or performance of the equipment being detected during such period of Guarantee, supplier shall be intimated to that effect by HSL and the supplier should replace defective part(s) of the equipment with new part(s) of the same kind but quality, workmanship and performance satisfactory at free of cost and material shall be booked to HSL stores on HSL door delivery as per the relevant clause at or alternatively, if desired by HSL, the cost of repair / replacement which may be incurred should be reimbursed to HSL within 15 days from the date of receipt of intimation. Besides, Guarantee clause, supplier should also extend similar Guarantee to the replaced material / equipment either due to the shortages / damages / defective / wrong supplied or any other reason for a period of 36 months from the date of supply of part(s) or 12 months from the date of delivery of Vessel to the Owner, whichever comes earlier.	Noted & Agreed. PBG will be submitted from nationalized or scheduled bank in India.
		Please confirm submission of Bank Guarantee (as per prescribed format placed in HSL web site) on Rs 100/- stamp paper issued by any Nationalised Bank in India, for 10% of order value (inclusive of taxes and duties) within 15 days from the date of receipt of order. Please confirm your acceptance specifically.	Noted & Agreed



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		Note: Performance Bank Guarantee / Security Deposit should be submitted by the suppliers / contractors within the time stipulated in the contract / order. In case of delay in submission of PBG / SD beyond the time stipulated in the contract / order, interest would be charged for such delay at the prevailing rate which is charged by the bankers on cash credit.	Noted & Agreed
8	LOADING FOR VARIATION IN PBG TERMS	In case of deviation from Tender Stipulation in respect of value of PBG or Warranty Period the loading factors will be applied as specified in Clause 29.5 and 29.6 for WARRANTY PERIOD of the HSL Standard Business Terms & Conditions	Noted
9		PERCENTAGE OF GST (Bidders are required to furnish the GST details in the following format)	Noted & Agreed. GST@18% extra is applicable.
		Sl. No Item Desc HSN/ SAC code (as applicable) Estwhile Tax Rates (ED, Service Tax, VAT/CST) incl entry tax and any other tax subsumed in GST Applicable GST IGST/ CGST+ SGST/UT SGT Applicable GST%	Any Changes in the law by the Govt. in terms of taxes & duties due to introduction of GST shall be applicable and reimbursement shall be made by shipyard accordingly at the time of payment
		As per the clause 171(1) GST Act 2017-Anti profiteering measure, any reduction in rate of tax on any supply of goods or services, the benefit of input tax credit shall be passed on to the recipient (i.e. HSL) by way of commensurate reduction in price. The Suppliers/Contractor are requested to Pass on the reduction in price to HSL. A declaration is to be furnished by the bidder stating the above in their Price bid.	
		Important Note: 1. Availing of Input Tax Credit (ITC) Vendor to note and ensure timely receipt of goods and tax invoices to HSL as per GST Law. In case GST credit is delayed/denied to HSL due to non/delayed receipt of goods and/or tax invoice or expiry of timeline prescribed in GST law for availing such ITC, or owing to the Vendor not paying the taxes to the Government with prescribed time as per law, the GST charged to HSL, or any other reasons not attributable to HSL and solely attributable to the Vendor, GST amount shall be recoverable from vendor along with interest levied/livable and any other penalties on HSL and the Vendor shall hold HSL indemnified against all costs and consequences therefore.	
		Incase Vendor delays declaring particulars in respect of any invoice in the GST return required to be filed by such vendors, and GST credit availed by HSL is denied or reversed subsequently as per GST law, GST amount paid by HSL towards such ITC reversal as per GST law shall be recoverable from vendor/contractor along with interest levied/livable on HSL and any other penalties on HSL and the vendor shall hold HSL indemnified against all costs and consequences therefore. GST Registration is an essential prerequisite for consideration of the offers. Offers of Vendors who do not have GST Registration shall be summarily rejected.	
10	TIME OF DELIVERY	Bidders may quote the materials from ex-stock/ Ready stock or to quote minimum possible Delivery time as asked in the tender schedule. The Delivery period shall reckon from placement of Order. NOTE: In case the offered delivery is not possible to our scheduled requirement, your offer will not be considered for further processing	Noted. Delivery will be 6 months from the date of receipt of confirmed order. Due to current COVID-19 scenario, the above delivery date is on non-binding nature as situation is beyond our control. However, we can adjust the delivery period provided the transport/freight conditions are worldwide
11	DELAYED DELIVERIES	The time for the delivery of the material stipulated In order shall be deemed to be the essence of the Contract and delivery must be completed not later than the dates specified therein. Should you fail to Deliver the equipment of any consignments thereof Within the periods prescribed for such delivery we shall be entitled to have recourse to the following: or b) to purchase elsewhere, without notice to you on your account and at your risk, the equipment not delivered or others of similar description without cancelling the order in respect of consignment not yet due for deliveryor c) to cancel the order. In the event of action being taken under (a), (b) and (c) above, you will be liable for any loss which we may sustain on that account, but you shall not be entitled to any gain on repurchase Delays due to force majeure conditions shall however be considered on satisfactory documentary evidence.	Noted & Agreed.
		If delivery of the material / equipment is delayed or incomplete beyond 3 months the purchaser in addition to their right envisaged under 11 (a), (b) and (c) above shall have the right to claim consequential damages from the suppliers for the loss the purchasers may suffer on account of such delayed or incomplete delivery of the equipment.	Noted & Agreed.
11.2	LOADING FOR DEVIATIONS TO LD SPECIFIED IN THE TENDER	Deviations sought in respect of rate per week and / or maximum ceiling in respect of liquidated damages shall be loaded to the quoted price. (For details see clause 29.1 of HSL Standard Business Terms & Conditions)	Noted

12	RISK PURCHASE	If supplier fails to supply the material within the stipulated delivery date, HSL reserves the right to procure the same or equivalent material from alternative sources without any notice to the supplier at the supplier's risk, responsibility and cost. Any extra cost incurred in the procurement of the materials from alternative sources will be recovered from the Bank Guarantee and if the value of the materials under risk purchase exceeds the amount of Bank Guarantee, the same may be recovered if necessary by due legal process.	Noted & Agreed.
13	CANCELLATION OF ORDER	Where so stipulated in the order, the Supplier shall render such reports from time to time as regards the progress of the contract and in such a form as may be called for by the Purchaser. HSL reserves the right to cancel an order forthwith without any financial implications on either side, if on completion of 50% of the scheduled delivery period the progress of manufacture is not to the satisfaction of HSL and failure on the part of the Supplier to comply with the delivery schedule is inevitable. In such an event the Supplier shall repay all the advances together with interest at prevailing bank rates from the date of receipt of such advances till date of repayment. The title of any property delivered to Purchaser will be reverted to the Supplier at their cost.	Noted & Agreed provided condition of Force Majeure is not the cause of delay. The same can be discussed in TNC if required. Any move towards cancellation shall be accompanied by proper notices prior to termination.
14	SERVICE ENGINEER CHARGES (IF REQUIRED)	Vendor shall provide lump sum charges (including TDS, Income tax, service tax / all applicable taxes, to & fro travel cost, accommodation charges) for providing technical assistance / supervision at yard. Vendor shall forward the major check points where the service engineer is required along with the number of days (excluding travel time) and number of service engineers at each stage. The checklist of jobs to be completed by HSL prior to arrival of service engineer for supervision / commissioning is to be submitted within one month of placement of order. In case the check list is completed by HSL and the work is not completed within the envisaged period, no extra payment would be made by HSL.	Noted & Agreed
14.2		However, for delay attributable to HSL, extra fixed man day rate is to be submitted along with the bid which shall be firm and fixed till complete execution of project. This fixed man day rate shall be inclusive of TDS / all applicable taxes within India and foreign, to & fro travel cost and accommodation. Travel time shall not be considered as a man day and cannot be paid.	Noted & Agreed
14.3		Payment towards service engineer charges (after deducting all applicable taxes viz., Income tax, services tax / TDS) will be paid separately against submission of work completion certificate and Invoice by supplier for each ship set.	Noted & Agreed
15		The materials are subject to final inspection at our site after receipt of same in HSL yard and inspection findings shall be binding on both parties. All shortages / transit damages / wrong supplies noticed during inspection at HSL site / installation of equipment on board Vessel, such shortages shall be replaced immediately on receipt of intimation from HSL at free of cost on HSL door delivery basis. All short supplied parts / replacements shall be guaranteed as per relevant Guarantee clause above.	Noted & Agreed
16	APPROPRIATION	Whenever under this order any sum of money is recoverable from you, we are entitled to recover such sum by appropriating in part or whole by deducting from any sum due or which at anytime thereafter become due to you, in respect of this or any other order. Should this sum be not sufficient to cover the full amount recoverable, you shall have to pay to us on demand the balance amount not so recovered without any protest or demur pay to us on demand the balance amount not so recovered	Noted & Agreed.
17	ARBITRATION	All disputes between the parties shall be referred to the sole arbitration of the Chairman & Managing Director of the purchasers or to a person to be appointed by the Chairman & Managing Director and if the Arbitrator appointed resigns, his post or vacates his office or is unable to unwilling to act to any reason whatsoever, the authority appointing him may appoint a new Arbitrator to act in his place. The Arbitrator so appointed may from time to time with the consent of the parties enlarge the period of time for making and publishing the award. The Arbitrator shall on all matters referred to him indicate his findings along with the sums awarded separately on each individual items of dispute and the venue of Arbitration shall in all cases, subject to the convenience of the arbitrator, be Visakhapatnam only. The award of the Arbitrator shall be final and binding subject to the provisions of the Indian Arbitration and Reconciliation Act, 1996.	Noted & Agreed.
18	JURISDICTION	The enforcement of the terms of the contract as well as all the transactions entered into by the suppliers with purchasers shall be deemed to have taken place within the jurisdiction of Visakhapatnam where purchasers works and office are situated and any cause of action arising in the due performance or breach of the Contract by either of the Parties hereto shall be deemed to have arisen within The jurisdiction of Visakhapatnam notwithstanding the residence or place of business of the Contractors/ Suppliers	Noted & Agreed.
19	FORCE MAJEURE	Unforeseeable causes beyond the control and without any fault or negligence of either party which effect delay or failure to fulfil this agreement partially or wholly shall be regarded as force majeure and shall include causes such as acts of God, war, fires, Floods, epidemics, Government Restrictions, strikes, earth quakes etc.	Noted & Agreed.
		The occurrence of case of Force Majeure shall be Notified by the party affected by it to the other Party immediately by cable and confirmed by Registered Letter / fax, stating the nature of occurrence accompanied by a certificate evidencing the claim. The same procedure shall be observed when the case of Force Maj	Noted & Agreed.



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20	VALIDITY OF OFFER	Please confirm that your offer shall be kept valid for a period of 180 days from the date of opening of tender (Tech Bid) and same shall be extended further for a certain period (if required) to enable finalize the matter. Please confirm.	Noted & Agreed.
21	BIDDERS CONFERENCE	Confirm that you are agreeable to depute your technocommercial team to HSL if requested to firm up and finalize both technical suitability and mutually agreeable commercial conditions.	Noted & Agreed.
22	LOADING CRITERIA	In case of Bidders failing to specify / quantify in monetary terms: For purposes of evaluating the Price Bids, LOADING as specified in the HSL Standard Business Terms & Conditions displayed in HSL Web Site shall be applied for those commercial terms which have not been quantified by Bidders in monetary terms.	Noted & Agreed.
23	PRICE FORMAT	Bidders are requested to indicate the unit rates, Class Inspection charges etc., as per Technical Specification, Freight charges, Insurance charges, applicable GST rates and / or any other Statutory levies payable etc., in the Price Bid. The prices quoted in the Price Bid shall be considered as final. Any components which are not quoted will be loaded as per HSL standard terms. Service engineer charges and training charges (if any) shall be explicitly quoted with all applicable taxes viz., GST, Income tax, TDS etc., In the absence of specific indication of any charges, it will be presumed that the same is included in the quoted price. Please note that price shall be quoted in figures as well as words.	Noted & Agreed.
25	HSL STANDARD BUSINESS TERMS & CONDITIONS	In all other cases of doubt HSL Standard Business Terms & Conditions will be applicable.	Noted & Agreed.
26	RIGHT OF PURCHASER	HSL reserves right to accept or reject any offer in case of any deviation to the above terms without assigning any reason there for.	Noted & Agreed.
27	INDIGENOUS AND IMPORT CONTENTS	If vendor intends to avail purchase preference as per extant rules of GoI, a Self-attested certificate declaring the indigenous and Import contents of offered material and their corresponding indigenous percentage should be submitted along with your Techno-Commercial Bid. For purchase preference and other exemptions to Indigenous vendors, and MSMEs, Please see vendor corner of HSL portal www.hslvizag.in.	SPT is indigeneously developed with 100% indigenous content. Self certification is enclosed with the offer
28	MSME CERTIFICATE	If MSME registered, please submit scanned copy of valid registration certificate	Noted & Agreed. MSME Certificate is attached
29	MSME REGISTERED (SC/ST) CATEGORY	If MSME registered firm owned by entrepreneur belonging to SC/ST category then submit the documentary evidence.	Noted
30	MSME WOMEN	If MSME registered owned by Women category then submit the documentary evidence	Noted
31	SECURITY OF INFORMATION /SECREC	Information contained in this Tender /SOTR and any other information supplied subsequently regarding the subject procurement or the ships concerned is not to be communicated to any third party without prior approval of the IHQ, MOD(N/DND).	Noted & Agreed.
32	INFRINGEMENT	Supplier shall hold harmless and keep the Purchaser indemnified against all claims arising as a result of infringement of any patent / copyrights on account of manufacture, sale or use of articles covered by the order.	Noted & Agreed.
33	BANNED/ DE-LISTING	The bidders shall give a declaration that they have not been banned or de-listed by any Government or quasi Government agencies or PSUs. If a bidder has been banned or de-listed by any Government or quasi Government agencies or PSUs, this fact must be clearly stated.	Noted & Agreed.
34	Purchase preference	To promote "Make in India" in pursuance of Govt. of India initiative, purchase preference shall be extended to domestic manufacturers as per GoI Public Procurement Order 2017	Noted & Agreed. SPT is indigeneously developed with 100% indigenous content.
35	Extended Warranty	Extended warranty will be placed post completion of contractual Guarantee/ Warantee. HSL shall issue separate PO incase it is required with Payment term as 100% payment against completion of warantee period. Request to confirm offer validity upto 2 years for extended warranty.	Noted & Agreed.
36	Country of origin	Request to mention country of orgin.	The offered product is Indian Origin. Elcome is the manufacturer